

Line 2

Case Name: *Beverly Ann Land v. Ford Motor Company, et al.*

Case No.: 25CV461206

See **ORDER** above. (As the moving party Defendant Ford Motor Company on August 12, 2026 withdrew this Motion for Judgment on the Pleadings, this Motion is **OFF CALENDER.**)

Line 3

Case Name: *Melissa Ikeda, et al. v. FCA US LLC, et al.*

Case No.: 25CV481480

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant FCA US LLC (“Defendant”) demurs under Code of Civil Procedure Section 430.10(e) & (f) to Plaintiffs’ Complaint on the following grounds:

1. Under Section 430.10(e) because Plaintiff’s Fourth Cause of Action for Breach of Implied Warranty is barred by the statute of limitations;
2. Under Section 430.10(f) because Plaintiff’s Fourth Cause of Action for Breach of Implied Warranty is too uncertain, vague, and ambiguous to constitute a cause of action against Defendants;
3. Under Section 430.10(e) because Plaintiff’s Sixth Cause of Action for Fraud and Deceit—Suppression of Fact fails to state facts sufficient to constitute a cause of action against Defendants;
4. Under Section 430.10(f) because Plaintiff’s Sixth Cause of Action for Fraud and Deceit—Suppression of Fact is too uncertain, vague, and ambiguous to constitute a cause of action against Defendants;
5. Under Section 430.10(e) because Plaintiff’s Sixth Cause of Action for Fraud and Deceit—Suppression of Fact is barred by the statute of limitations.

Notice of Demurrer (the “Demurrer”) at 1:26-27, 3:5-24 (filed: Jan. 9, 2026).

Defendant also moves under Code of Civil Procedure Section 436 to strike the following portions of Plaintiffs’ Complaint:

1. Page 13, Prayer, Item E “For punitive damages;”
2. Page 13, Prayer, Item F “For a civil penalty in the amount of two times Plaintiffs’ actual damages pursuant to Civil Code Section 1794, subdivision (c) or (e).”

Notice of Motion to Strike (the “Motion to Strike”) at 1:26-2:4 (filed: Jan. 9, 2026).

The Motion to Strike is made on the grounds that Plaintiffs have failed to plead sufficient facts sufficient to establish that Defendants acted with malice, fraud, or oppression, as required under California law to state a claim for punitive damages; and that Plaintiffs have also failed to comply with Code of Civil Procedure 871.24(a) & (h) as required to state a claim for civil penalties under Civil Code section 1794, subdivision (c) or (e). Motion to Strike at 2:5-11.

The Demurrer and Motion to Strike came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On July 4, 2018, Plaintiffs entered into a warranty contract with FCA for a 2020 Ram 1500, vehicle identification number 1C6SRFHMXLN247405 (“Subject Vehicle”), which was manufactured and distributed by FCA. The contract warranted the Subject Vehicle “bumper-to-bumper,” including but not limited to powertrain, emission, etc. (Complaint ¶¶ 7-8)

Before Plaintiffs’ purchase, FCA knew that vehicles equipped with the same 3.0-liter engine have one or more defects in their Exhaust Gas Recirculation (“EGR”) coolers that can result in thermal fatigue, leading the coolers to crack over time and leak coolant, which can cause combustion within the intake manifold and lead to a vehicle fire and sudden loss of power (“EGR Defect”). FCA acquired this knowledge through various sources of information, including but not limited to pre-production and post-production testing data, consumer complaints, dealership repair orders, and aggregate warranty data. (Complaint ¶¶ 16, 19)

FCA knew about the EGR defect and its safety risks prior to Plaintiffs’ purchase of the subject Vehicle as it issued a recall in October 2019, advising customers that FCA is making every effort to finalize a remedy as quickly as possible and in the interim they should monitor the vehicle’s coolant levels and contact their dealers if the levels were consistently low. FCA later updated the Recall to provide for a part replacement (part number 68483334AA, and later, part number CSNDVB11AB). Had Plaintiffs known the Subject Vehicle and its EGR cooler were defective at the time of sale, they would not have purchased it. (Complaint ¶¶ 20, 27-29, 72)

Plaintiffs have presented the Subject Vehicle to FCA’s authorized repair facilities at least on one occasion. FCA still has not fixed the EGR cooler that causes the symptoms associated with the EGR Defect. (Complaint ¶¶ 30, 63)

Plaintiffs discovered FCA’s wrongful conduct on November 28, 2025, when they requested a buyback and/or restitution of the Subject Vehicle since the Vehicle continued to exhibit symptoms of defects following unsuccessful repair attempts. (Complaint ¶ 40)

Plaintiffs filed this action on December 3, 2025, alleging causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d); (2) Violation of Civil Code section 1793.2, subdivision (b); (3) Violation of Civil Code section 1793.2, subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent repair, and (6) Fraudulent Inducement – Concealment.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).) A demurrer may be used to object to the legal sufficiency of the pleading as whole, or to any cause of action stated therein, on one or more of the grounds enumerated by statute, however, it must dispose of an entire cause of action to be sustained. (C.C.P. §§ 430.10 & 430.50(a); *Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Ibid.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Ibid.*)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc, § 436, subd. (a).) Furthermore, a court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc, § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc, § 437.)

III. Request for Judicial Notice

FCA requests judicial notice of a partial list of manufacturers that have elected to opt-in to Cal. Code of Civil Procedures § 871.20 et seq, as maintained on the California Department of Consumer Affairs’ government website.

FCA's request for Judicial Notice is **GRANTED** pursuant to Evidence Code section 452(h).

IV. Analysis of the Demurrer

A. Fourth Cause of Action – Breach of the Implied Warranty of Merchantability

1. Statute of Limitation

FCA contends that Plaintiffs' fourth cause of action for breach of the implied warranty of merchantability is time-barred by the four-year statute of limitations since the complaint was filed approximately six years after the vehicle was purchased. (Demurrer at 5:22-28)

California Uniform Commercial Code's (UCC) four-year statute of limitations for breaches of warranty applies to Song-Beverly breach of express warranty claims and breach of implied warranty claims. (Com. Code, section 2725(1), (2); *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215.) "Typically, a breach of the implied warranty of merchantability occurs at the date of sale" and implied warranty claims must be brought within four years of when the breach occurred. (See *Flat v. Ford Motor Co.* (N.D. Cal. 2023) 678 F.Supp.3d 1138, 1141.)

But the Song-Beverly Act provides that when accompanied by an express warranty for future performance spanning one year or longer, the duration of the implied warranty of merchantability may extend to a period of not more than one year after purchase. (Civ. Code, § 1791.1, subd. (c).) This provision has been held to extend to an implied warranty for future performance, such that "the implied warranty of merchantability may be breached by a latent defect undiscoverable at time of sale." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1308.) In other words, latent defects which exist in the first year after tender of delivery, even if they do not manifest until after the first year, can be a basis for a breach of implied warranty claim so long as the claim is filed within four years of the date of sale. (*Id.* at 1306-1307, fn. 6.)

Here, Plaintiffs allege that: (1) they entered a warranty contract with FCA on December 31, 2019; (2) the Subject Vehicle was sold with the defective EGR cooler; (3) defects and non-conformities manifested themselves within the applicable express warranty period; (4) the Subject Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful repair attempts; (5) they discovered FCA's wrongful conduct on November 28, 2025; (6) the four-year statute of limitations was tolled due to the delayed discovery rule, the repair rule, and FCA's fraudulent concealment of the defect. (Complaint ¶¶ 7, 12, 15, 40, 41.)

While the Court can infer the Subject Vehicle was sold and/or delivered to Plaintiff on the date they entered into a warranty contract with FCA, the Complaint lacks any factual allegations in this regard. Where Defendant demurs on the affirmative defense that the action is time-barred, the defect must clearly and affirmatively appear on the face

of the complaint and/or matters subject to judicial notice; it is not enough that the Complaint shows that the action may be barred. (See, *Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 400.)

Furthermore, Plaintiffs' allegations create factual questions about when the cause of action accrued and whether earlier discovery of the defect was possible despite reasonable diligence. These are questions that cannot be resolved on demurrer where the allegations, liberally construed, support delayed accrual.

Accordingly, FCA's Demurrer to the Fourth Cause of Action on this ground is **OVERRULED**.

2. Uncertainty

FCA also demurs to the Fourth Cause of action on the grounds that it is uncertain, vague, and ambiguous. (Notice of Demurrer and Demurrer at 3:8-11). But FCA develops no substantive argument on these grounds in its memorandum.

Plaintiffs do allege breach of the implied warranty of merchantability, identify the statutory basis (Civil Code sections 1791.1, 1792, 1794, 1795.5), specify that the Subject Vehicle was sold with latent defects, identify the nature of those defects (EGR defects), and allege that the defect constitutes a breach because the Subject Vehicle does not pass without objection in the trade, is not fit for ordinary purposes, and does not conform to affirmations of fact. (Complaint ¶¶ 7-21, 57-60.) FCA has plainly been able to understand and respond to this claim, as evidenced by its substantive arguments regarding the statute of limitations and the sufficiency of the allegations.

Accordingly FCA's Demurrer to the Fourth Cause of Action on this ground is **OVERRULED**.

B. Sixth Cause of Action for Fraudulent Concealment

The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.)

FCA contends Plaintiffs' claim fails because (1) it is barred by the applicable three-year statute of limitation, (2) it is barred by the economic loss rule, and (3) it lacks the necessary factual specificity. (Demurrer at 7:10-14:24)

1. Statute of Limitation

Claims for fraudulent inducement based on concealment are subject to a three-

year statute of limitations. (Code Civ. Proc., § 338(d).) FCA contends Plaintiffs' claim is time-barred because the complaint was filed approximately six years after the Subject Vehicle was purchased on December 31, 2019. (Demurrer at 13:27-14:3)

But a fraud claim "is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd.(d).) Plaintiffs allege they did not discover FCA's wrongful conduct until November 28, 2025. (Complaint ¶ 41) As alleged, the complaint is timely since it was filed weeks after the statute accrued on November 28, 2025.

FCA's argument that Plaintiffs must allege facts showing they were not negligent in discovering the defects earlier is misplaced. Plaintiffs need only allege the ultimate facts necessary to the statement of an actionable claim. "It is both improper and insufficient for a plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts." (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal. App. 4th 1105, 1120; internal citation omitted.)

Accordingly, FCA's Demurrer to the Sixth Cause of Action on this ground is **OVERRULED.**

2. Requisite Specificity

FCA contends Plaintiffs fail to allege facts showing (1) what the defect was, (2) FCA's duty to disclose, (3) FCA's exclusive knowledge of the defect, and (4) FCA's active concealment of the defect. (Demurrer at 7:10-14:24) The Court is not persuaded. First, Plaintiffs allege that 2020 Ram 1500 vehicles equipped with the 3.0-liter engine have defects in their EGR coolers that result in thermal fatigue, cracking, coolant leaks, combustion, vehicle fire, and sudden loss of power. These allegations sufficiently identify the defect with particularity.

Second, exclusive knowledge does not require that the facts be known or accessible only to FCA. It is sufficient that FCA had superior knowledge of information that was not reasonably discoverable by the Plaintiffs. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40) Plaintiffs allege FCA acquired knowledge through sources such as pre-production and post-production testing data, early consumer complaints made directly to FCA and its dealer network, aggregate warranty data, and warranty repair data. These are sources to which consumers would not have access. Plaintiffs further allege FCA knew of the defect prior to Plaintiffs' purchase – as shown by FCA's Recall 19V-757 issued in October 2019 - and that Plaintiffs could not reasonably have been expected to learn or discover the EGR defect until well after their purchase. (Complaint ¶¶ 19, 22-29) These allegations sufficiently show FCA's superior knowledge of the defect prior to Plaintiffs' purchase of the Subject Vehicle.

Third, Plaintiffs allege FCA (1) concealed the defect from its sales representatives and from Plaintiffs at the time of sale and thereafter, (2) omitted mention of the defect, (3) was inundated with complaints but either informed consumers their vehicles were functioning properly or conducted repairs that merely masked the defect, (4) issued a

recall in October 2019, approximately two months prior to Plaintiff' purchase of the Subject Vehicle, acknowledging the defect but told consumers no remedy was available and instructed them to monitor coolant levels, an instruction that could exacerbate the danger. (Complaint ¶¶ 20, 26-29) These allegations describe affirmative acts beyond mere nondisclosure.

Fourth, “[a] duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff’s fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (*i.e.*, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (*i.e.* partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (*i.e.*, active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, ..., or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 40, internal citations and quotes are omitted.) All the same, “[a] relationship between the parties is present if there is some sort of transaction between the parties.” (*Hoffman v. 162 N. Wolfe LLC*, (2014) 228 Cal. App. 4th 1178, 1187, internal citation and quotes omitted)

Here, Plaintiffs allege they entered into an express warranty agreement with FCA on December 31, 2019. (Complaint ¶ 7) The Court is obligated to construe all inferences in the complaint in the light most favorable to Plaintiffs. As such, Plaintiffs have sufficiently alleged a direct transactional relationship with FCA that gives rise to a duty to disclose.

Accordingly, FCA’s Demurrer to the Sixth Cause of Action on this ground is **OVERRULED.**

3. Economic Loss Rule

Under the economic loss rule, there is generally no recovery in tort for purely economic losses arising from a contractual relationship, but there are exceptions for intentional tort claims like fraud. (*See Rattagan, supra*, 17 Cal.5th at 38.) For purposes of this exception, the California Supreme Court has stated that fraudulent concealment claims are treated no differently than affirmative fraudulent conduct, so long as a plaintiff can establish all the required elements of the cause of action independently of the parties’ contractual rights and obligations and can demonstrate an exposure to risks of harm beyond those that would be reasonably expected as the result of a contractual breach. (*Id.* at 38-39.) ”If the alleged breach is based on a failure to perform as the contract provides, and the parties reasonably anticipated and allocated the risks associated with the breach, the cause of action will generally sound only in contract because a breach

deprives an injured party of a benefit it bargained for. However, if the contract reveals the consequences were not reasonably contemplated when the contract was entered and the duty to avoid causing such harm has an independent statutory or public policy basis, exclusive of the contract, tort liability may lie.” (*Id.* at 27.)

Here, the Court finds that a party entering a warranty contract has not bargained with the expectation that the manufacturer has concealed known material defects. As noted above, Plaintiffs have alleged that they would not have purchased the Subject Vehicle had they known about the defects. (Complaint ¶ 72) The Court concludes that buying a vehicle with a known material defect risks harm beyond what would reasonably be expected from a manufacturer’s failure to fulfill a warranty obligation once a problem arises with the vehicle. Therefore, the Court finds that Plaintiffs’ claim is not barred by the economic loss rule since their loss arises from FCA’s concealment of material facts to induce their purchase and not from their failure to conduct repairs in compliance with the warranty contract.

Additionally, California has a strong policy interest, independent from the warranty itself, in ensuring automotive manufacturers do not withhold safety-related information from consumers. (*Rattagan, supra*, 17 Cal.5th at 44; [“California public policy strongly supports imposing a tort duty on contractual parties to refrain from fraudulent deceit and favors enforcement of valid fraud actions, which the Legislature has facilitated through the enactment of the general fraud statute.”].)

Accordingly, FCA’s Demurrer to the Sixth Cause of Action on this ground is **OVERRULED**.

V. Analysis of the Motion to Strike

FCA seeks to strike both the punitive damages prayer (Prayer Item E) and the civil penalties prayer (Prayer Item F) from the Complaint. The Motion to Strike raises two principal issues: (1) whether Plaintiffs have adequately alleged facts supporting punitive damages under Civil Code section 3294, including the requisite corporate authorization or ratification; and (2) whether Plaintiffs complied with the pre-suit notice requirements of Code of Civil Procedure section 871.24 for civil penalties.

A. Punitive Damages

A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Pursuant to Civil Code section 3294, subdivision (b), an employer will not be liable for punitive damages unless the employer engages with “the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (*Id.* at subd. (b).) Punitive damages thus require more than the mere commission of tort. “A claim for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure. The claim may also be supported by showing despicable conduct which is carried out by the defendant with a willful and conscious disregard of the

rights or safety of others. To establish conscious disregard, the plaintiff must show that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Spinks v. Equity Residential Briarwood Apartments*, (2009) 171 Cal. App. 4th 1004, 1055; internal citations and quotes omitted)

Fraudulent acts of concealment may support awards of punitive damages. (e.g., *Werschull v. United Cal. Bank* (1978) 85 Cal. App. 3d 981, 1004.) More specifically, in lemon law cases, a car manufacturer’s presale fraud or concealment is distinct from its subsequent conduct in breaching statutory warranty obligations, such that the Plaintiffs can recover punitive damages with a penalty under the Song-Beverly Act. (See, e.g., *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal. App. 5th 828, 841; *Bowser v. Ford Motor Co.* (2022) 78 Cal. App. 5th 587, 627; *Anderson v. Ford Motor Co.* (2022) 74 Cal. App. 5th 946, 967-973; *Covert v. FCA USA, LLC* (2022) 73 Cal. App. 5th 821, 828.)

Here, the Complaint sufficiently alleges ultimate facts concerning fraud and concealment as analyzed with regard to the demurrer. Furthermore, concealment of a known safety defect that can cause fires and loss of vehicle control at highway speeds, where FCA possessed exclusive or superior knowledge and intentionally withheld it to complete sales, plausibly alleges despicable conduct carried on with conscious disregard of the safety of others. These allegations support the remedy for punitive damages.

However, FCA contends the Complaint’s allegations of fraud fail (1) to meet the clear and convincing evidence standard for punitive damages, and (2) to identify a single employer who was involved in the sale of the Subject Vehicle and had a decision-making power over corporate policy. (Motion at 6:22-24; 8:23-9:9). But the Court rejects those arguments for the following reasons:

1. FCA conflates pleading requirements with evidentiary requirements. FCA’s reliance on *Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, and *Wilson v. Southern California Edison Co.* (2015) 234 Cal. App. 4th 123, for the proposition that corporate ratification requires identification of specific officer/director, is misplaced. These cases address the sufficiency of trial evidence, not the adequacy of pleading. In pleading a claim for fraudulent concealment, Plaintiffs are required to plead ultimate facts; not evidentiary details identifying the individual corporate agent by name. FCA, unlike Plaintiffs, is in a position to know the exact employees responsible for decisions to disclose defects. Plaintiffs have sufficiently put FCA on notice of the purported fraudulent omission for FCA to prepare a defense.
2. The Complaint alleges that FCA knew or learned about the EGR Defect from various internal sources, including pre-production testing data, aggregate warranty data compiled from its nationwide dealer network, and testing conducted in response to consumer complaints. The Complaint further alleges FCA nonetheless continued to sell the Subject Vehicle without disclosure, and even issued a recall (Recall 19V-757) acknowledging the defect but stating no remedy was available. (Complaint ¶¶ 19, 20, 22-29) The Court can reasonably infer that a decision of this scope—to withhold a known, safety-related defect from the consuming public

across FCA's dealer network, to continue manufacturing and selling affected vehicles, and to issue a national recall without providing an adequate remedy—is not plausibly attributable to a single low-level employee acting alone. It is the kind of policy-level decision that is necessarily made, authorized, or ratified by those who set corporate policy. At the pleading stage, where all reasonable inferences are drawn in Plaintiffs' favor and allegations are assumed true, this is sufficient to satisfy Civil Code section 3294, subdivision (b).

Accordingly, FCA's Motion to Strike Prayer Item E for punitive damages is **DENIED**.

B. Civil Penalties

FCA also seeks to strike Plaintiffs' civil penalties prayer on the grounds that Plaintiffs failed to comply with Code of Civil Procedure section 871.24, subdivision (a), which requires a consumer to provide written demand for restitution at least 30 days before commencing an action seeking civil penalties under Civil Code section 1794(c). FCA notes Plaintiffs requested a buyback on November 28, 2025, only five days before filing suit on December 3, 2025. (Motion at 9:12-25)

Code of Civil Procedure section 871.24 provides that at least thirty days prior to filing suit, a plaintiff shall, while in possession of the motor vehicle at issue, "(1) [n]otify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ('VIN') of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle [and] (2) [d]emand that the manufacturer repurchase or replace the motor vehicle." (Code Civ. Proc., § 871.24(a).) Failure to do so does not prevent the consumer from filing suit, but bars the recovery of civil penalties. (Code Civ. Proc., § 871.24(h).)

Here, Plaintiffs allege that they requested a buyback or restitution on November 28, 2025. (Complaint ¶ 41) Whether that communication satisfied the content, manner, and timing requirements of section 871.24(a) depends on extrinsic facts not appearing on the face of the complaint. The statute itself provides that "[m]inor deviations in the notice submitted pursuant to subdivision (a) shall not disqualify consumers from seeking civil penalties." (Code Civ. Proc., § 871.24, subd. (b).) Whether the five-day gap between demand and filing of the complaint constitutes minor or substantial deviation is a factual question that cannot be resolved on the pleadings alone.

Additionally, Code Civ. Proc. § 871.24 by its own terms governs only an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code. It says nothing about, and does not condition, a civil penalty sought under subdivision (e) of Civil Code § 1794. Subdivision (e) provides a separate and independent basis for a civil penalty where the manufacturer fails to maintain a qualified third-party dispute resolution process that substantially complies with Civil Code section 1793.22. (Civ. Code § 1794(e).) The Complaint and Prayer Item F seek the civil penalty under subdivision (c) or (e) in the alternative.

Accordingly FCA's Motion to Strike the complaint's Prayer Item F on this ground is **DENIED**.

VI. Conclusion & Order

FCA Demurrer to the Complaint's Fourth and Sixth Causes of Action is **OVERRULED**.

FCA's Motion to Strike portions of the Complaint is **DENIED**.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Melissa Ikeda, et al. v. FCA US LLC, et al.*

Case No.: 25CV481480

See Line 3 above for complete tentative ruling on both the Demurrer and the Motion to Strike. After the hearing, the Court will prepare and file one formal Order on both the Demurrer and the Motion to Strike.